Consider and Adopt Changes to Local Policies: EMB *Miscellaneous Instructional Policies: Teaching About Controversial Issues*

Recommendation:

Trustee Dawson requested that the Board of Trustees consider and adopt revisions to Local Policy EMB *Miscellaneous Instructional Policies: Teaching About Controversial Issues*.

Explanation:

The revisions to the above-mentioned policies are recommended based on Legislation in the 87th, 88th, and 89th sessions and the revised Texas Education Code.

Policy Reference: BF Local

The District shall address controversial topics in an impartial and objective manner. Teachers shall not use the classroom to transmit personal beliefs regarding political or sectarian issues. Students and educators shall ensure that, to the extent possible, discussions are conducted fairly and courteously.

As used in this policy, "Subject Persons" means those persons who (1) are employed by the District, (2) volunteer time or services on behalf of the District or~~and~~ (3) directly interact with District students.

Selection of Topics

Teachers shall not be compelled to discuss widely debated and currently controversial issues of public policy or social affairs. However, in the event a teacher chooses to discuss a topic described above, the teacher must explore that topic objectively and in a manner free from political bias. In guiding classroom discussion of controversial issues, teachers shall comply with the instructional requirements and prohibitions imposed under Texas law and by the District. ~~A teacher selecting topics for discussion in the classroom shall be adequately informed about the issue and capable of providing instruction on the subject, free from personal bias.~~ In addition, the teacher shall be certain that:

Commented [LD1]: from HB 3979, 87th session

1. The issue in question is within the range, knowledge, maturity, and comprehension of the students.
2. The issue is current and educationally significant.
3. The consideration of the issue does not interfere with required instruction.
4. Sufficient relevant information on all aspects of the issue is provided.

If a teacher is unsure about a topic of discussion or about the methods to employ, the teacher may discuss the issue with the principal.

Classroom Discussion

In guiding classroom discussion of controversial issues, teachers shall:

1. Foster students' critical thinking skills.
2. Encourage discussion based on rational analysis.
3. Create an atmosphere in which students learn to respect others' opinions and disagree courteously.
4. Ensure that multiple viewpoints about the issue are presented by introducing an unexpressed viewpoint when necessary.
5. Avoid any attempt to coerce or persuade students to adopt the teacher's point of view.
~~5.~~6. Comply with the instructional requirements and prohibitions imposed under Texas law.

Certain Instructional Requirements and Prohibitions

The District, including its teachers and administrators, shall not:

1. Require, teach, make part of a course or training, or otherwise instruct any Subject Persons or students that:
   a. One race or sex is inherently superior to another race or sex;
   b. An individual, by virtue of the individual's race or sex, is inherently racist, sexist, or oppressive, whether consciously or unconsciously;
   c. An individual should be discriminated against or receive adverse treatment solely or partly because of the individual's race or sex;
   d. An individual's moral character, standing, or worth is partially or necessarily determined by the individual's race or sex;
   e. An individual, by virtue of the individual's race or sex, bears responsibility, blame, or guilt for actions committed by other members of the same race or sex;
   f. Meritocracy or traits such as a hard work ethic are racist or sexist or were created by members of a particular race or group to oppress members of another race or group;
   g. The delivery of slaves and the advent of slavery in the territory that is now the United States constituted the true founding of the United States; or
   h. With respect to their relationship to American values, slavery and racism are anything other than deviations from, betrayals of, or failures to live up to the authentic founding principles of the United States, which include liberty and equality;

2. Teach, instruct, train, introduce, discuss or require an understanding of The 1619 Project, which began as a compilation of essays, poems, and other works originally published in The New York Times Magazine in August 2019 but has become the impetus for the development of resources, programs, and curricula for educators; or

3. Teach, instruct, advocate, promote, or discuss any ideas, beliefs, concepts, theories, principles, rules, thoughts, or impressions that have any connection to, relationship with, refer to, are influenced by, or are otherwise consistent with so-called "Critical Race Theory" or systemic discrimination ideologies, including, but not limited to, those ideologies set forth in this section of this policy, as such ideologies have been understood, developed, taught, interpreted, defined/redefined by individuals, organizations, and others who have created, defined, redefined, interpreted, taught, instructed, advocated, promoted, or discussed or used to understand so-called "Critical Race Theory" or systemic discrimination ideologies. This subsection, along with subsection (1) and (2) above, shall be collectively referred to as "Critical Race Theory or Systemic Discrimination Ideologies" or "CRT/SDI"".

Commented [LD2]: from HB 3979, 87th Session

Social and Emotional Learning Concepts

Commented [LD3]: from SB 123, 87th session
TEC 29.906

Most traditional social and emotional learning (SEL) teachings are consistent with the District's general education goals, particularly concepts relating to the development of self-awareness, individualism, self-reliance, self-motivation, communication, conflict resolution, and interpersonal skills that are vital for academic, professional, and life success.

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However, some SEL concepts can be potentially divisive, conflict with District policy, and be inconsistent with the District's education goals. As such, the District, including its Subject Persons, shall not teach, instruct, train or otherwise require any Subject Person or any individual or group, to adopt, support, or otherwise promote SEL concepts that are divisive, conflict with District policy, or are inconsistent with the District's education goals.

For the avoidance of doubt, the District will continue to support and promote the following ideologies and concepts, which are ~~generally~~ consistent with the positive components of SEL and with the general educational goals of the state and District: individualism; a rejection of victimhood mentality; conflict resolution techniques; aspiration to serve as entrepreneurs and spiritual and community leaders; financial self-sufficiency; importance of the nuclear family; liberty, hard work and perseverance as the basis for a successful society; and the virtues of self-discipline, forgiveness, patience, kindness, determination, hope, thankfulness, reliability, honesty, industry and responsibility.

Gender Fluidity

Commented [LD4]: Based on SB 12, 89th session Texas Education Code Sec. 11.401 – Social Transitioning Prohibited

The District, including its Subject Persons, shall not teach, instruct, train or otherwise require any Subject Person or any individual or group, to adopt, support or otherwise promote Gender Fluidity (as defined herein). Additionally, Subject Persons shall not teach, instruct, train, or otherwise require any other Subject Person to teach, instruct, train, or otherwise communicate to any individual or group topics regarding sexual orientation or gender identity.

For purposes of this policy, "Gender Fluidity" means any belief, theory or ideology that:

1. Espouses the view that gender is merely a social construct;
2. Espouses the view that it is possible for a person to be any gender or none (i.e., non-binary);
3. Espouses the view that an individual's biological sex should attempt to be changed to "match" a gender different from that person's biological sex; and
4. Supports hormone therapy or other medical treatments or procedures to temporarily or permanently alter a person's body so that it "matches" a gender different from that person's biological sex.

A Subject Person may not use, or permit others to use, any District resource, funds, property, or personnel to adopt, support, or promote Gender Fluidity as defined herein.

Pronoun Usage

Commented [LD5]: Based on SB 12, 89th session Texas Education Code Sec. 11.401 – Social Transitioning Prohibited

The District will not promote, require or encourage the use of pronoun identifiers for students, teachers or any other persons in any manner that is inconsistent with the biological sex of such person as listed on:

1. The student's official birth certificate; or
2. If the student's official birth certificate is unobtainable, another government-issued record.

However, to the extent a student (with the written consent of such student's parent or legal guardian), parent or legal guardian has specifically, in writing, requested or directed the use of a specific pronoun for that particular student, a teacher or administrator interacting with the student may comply with such request.

A Subject Person shall not be permitted to require or request a student to use a pronoun to refer to such Subject Person in a manner that is inconsistent with the biological sex of such Subject Person as listed on:

1. The Subject Person's official birth certificate; or
2. If the Subject Person's official birth certificate is unobtainable, another government-issued record.

A parent of a student enrolled in the district or a district employee may report to the board of trustees a suspected violation of this gender fluidity and/or pronoun usage policy. The board shall investigate any suspected violation and determine whether the violation occurred. If the board determines that a district employee has violated this policy, the board shall immediately report the violation to the commissioner.

Student or Parent Concerns

A student or parent with concerns regarding instruction about controversial issues shall be directed to the complaint policy at FNG.

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